

24NNCV05935 24NNCV05935

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-03
Motion: MOTION FOR ATTORNEY FEES
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C08%2F03%2F2026
Source SHA-256: 878277969877ea6e3fa4c79f2b5dceec043074e071561f36efd05e9e8cb0e529

Case Number: 24NNCV05935 Hearing Date: August 3, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

TIGRAN
MNATSAKANYAN,

Plaintiff(s),

vs.

GENERAL
MOTORS LLC,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24NNCV05935

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEY FEES

Dept.

3

8:30

a.m.

August 3,

2026

)

I.

INTRODUCTION

On November 19, 2024, plaintiff Tigran Mnatsakanyan ("Plaintiff") filed this motion for attorney fees. Plaintiff accepted an offer from defendant General Motors LLC ("Defendant") made pursuant to Code of Civil Procedure § 998 ("Offer") on September 16, 2025, which resolved Plaintiff's claims related to the purchase of the new 2023 Chevrolet Suburban.

Plaintiff seeks a fee award of \$67,692

consisting of:

-

\$44,728

in attorneys' fees;

-

\$22,364

for a 1.5 lodestar multiplier;

-

\$600

in assistant fees; and

-

\$3,934.18

in costs.

On July 20, 2026, Defendant filed an opposition brief.

Plaintiff filed a reply brief on July 22, 2026.

II.

DISCUSSION

Pursuant to Civil Code section 1794(d),

"[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." "The lodestar method is applicable to calculating attorney fees under section 1794, subdivision (d)." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 997.)

The Court first addresses Defendant's argument that Plaintiff's motion is untimely. Defendant argues that Plaintiff's motion is untimely because they accepted the Offer on November 7, 2025, but did

not file this motion until 223 days after the settlement. The Court heard, and rejected, this argument when considering Defendant's motion to tax costs on July 23, 2026. The Court again rejects Defendant's argument here because judgment has not yet been entered and no notice of dismissal has been served. (CRC 3.1702(b)(1); 8.104(a)(1).)

Next, the Court considers the reasonableness of Plaintiff's fee request. Plaintiff's lawyers submit billing records and declarations in support of their request for fees, which includes:

-
\$6,715
for Hovanes Margarian for 9.7 hours of work at hourly rates of \$650 and \$750.

-
\$20,373
for Armen Margarian for 36.3 hours of work at hourly rates of \$550 and \$670;

-
\$17,640
for Patrick Kenneth Kimball for 25.20 hours of work at the hourly rate of \$700;

Defendant does not challenge the reasonableness of these rates and only contends that "at least 55.4 of the 75.2 hours billed [by Plaintiff's counsel] should be eliminated." (Opp., p. 8.) These hours are sorted into categories including pre-filing work, block-billed clerical work, excessive review, drafting discovery requests and responses, vehicle inspection, client communication, estimated amounts associated with this motion. post-filing/discovery and settlement work, client communication.

Category 1: Pre-Filing Work

Defendant requests the Court eliminate 11.7 hours for attorney work and 0.9 hours for work performed by staff on the grounds that the billed entries include non-compensable clerical case management work, duplicative assessments, "vehicle inspection & test drive" (which is not legal work), and preparing the demand and complaint. The Court reduces the hours spent on pre-filing work as follows:

-

Reduce

Armen Margarian's time to prepare a demand letter from 0.6 to 0.3 at \$550/hour and strike Hovanes Margarian's time to review demand letter in the amount of 0.1 at \$650/hour. Total reduction: \$230.

-

Reduce

amount of time spent on preparing the summons, complaint, and related case initiation documents by Armen Margarian from 3.2 to 1. The Complaint is based on a template and incorporates information that should have already been prepared in the two case assessments performed in September and October. The Court also deducts 0.1 hours of Hovanes Margarian's time to review the Complaint. Total reduction: \$1,275.

-

Reduce

amount billed by assistant Elmira Oganyan for proofreading, sending demand letter, and checking delivery status of same by 0.4 for a reduction of \$60.

Categories 2 and 3: Block-billed

Post-filing Clerical Entries and Excessive "Review"

Defendant argues 7.2 hours of attorney

time were improperly billed for clerical entries, documenting costs, making notes in the case file, calendaring deadlines, reviewing notices and court orders, and other similar clerical tasks. Defendant also argues that Plaintiff's counsel improperly billed 9.8 hours performing excessive "review" by multiple attorneys of the same case file. Defendant argues this work is duplicative and constitutes time padding, but fails to identify any specific entries for the Court to consider. Accordingly, the request to strike these entries is denied.

Categories 4 through 6: Discovery

Defendant argues that templated

discovery responses to its own templated discovery requests should not have taken 4.5 hours to bill and argues it could have been completed in 0.5 hours. The Court disagrees that the time expended was unreasonable. Just because Defendant chose to use templates does not necessarily mean that Plaintiff can also rely on templated responses.

Defendant additionally argues

Plaintiff's counsel could have prepared templated discovery requests within an hour and requests a reduction of 3.5 hours. The Court disagrees that the amount of time spent is unreasonable. The billing entries show that each discovery device was over 10 pages long with 128 special interrogatories, 42 requests for production, and 87 requests for admission, which must be tailored according to the particular defects alleged by Plaintiff. In light of the length of these documents, the claimed amount of time to prepare each set of discovery is reasonable.

Nevertheless, due to the experience of

Armen Margarian, the Court considers Hovanes Margarian's "review" and Armen Margarian's "finalization" of any discovery duplicative. Also, the time taken to calendar the deadline is clerical work while billing 0.6 hours to prepare a notice of deposition is also excessive when there are only 12 categories of testimony and the content of the notice is substantially similar to other notices prepared. Accordingly, the amount spent on discovery is reduced by \$210 (0.3 hours at \$700/hour for preparing deposition notice), \$75 (0.1 at \$750/hour for "review" of deposition notice), and \$220 (0.4 at \$550/hour for "finalizing" discovery and calendaring deadlines) for a total reduction of \$505.

Defendant argues that Plaintiff's

counsel should not recover anything for preparing a second set of written discovery because it was never served. On reply, Plaintiff's counsel attaches an email showing that the discovery was, in fact, served. Furthermore, the amount of time spent to prepare the discovery requests is mostly reasonable and the Court only strikes the time claimed by Hovanes Margarian to "review" the discovery and the time claimed by Armen Margarian to calendar any deadlines.

Total reduction: \$120

Category 7: Post-Filing Vehicle

Inspection

Defendant

argues that Plaintiff's counsel improperly billed 3.1 hours to schedule and participate in a second vehicle inspection, communicate with the expert, and conduct a post-inspection case assessment. Defendant claims this amount of time was unnecessary and excessive because counsel's role in this was limited and any scheduling, coordinating, and attendance was administrative or

observational that did not require attorney time. The Court disagrees that the time spent communicating with the expert and attending the inspection did not require attorney time because the results of the inspection still must be understood by the attorney in order to evaluate any case strategy. The request to reduce this amount of time is therefore denied.

Category 8: "Client Communications"

Defendant

argues that a 33% reduction should be applied to the 6.6 hours billed for "client communications" because the entries do not contain enough information to determine whether the time spent on those communications were "reasonably incurred." The Court notes that communications took place between September 30, 2024 and November 20, 2025, and that the frequency of communications do not appear excessive as they take place anywhere from one to three times each month while the case was actively being litigated. The request to reduce the amount of time billed for client communications is denied.

Category 9: Fee Motion

Plaintiff's

counsel estimates that it will take 9.8 hours to review an opposition brief, draft and prepare a reply, and prepare for and attend the hearing. This amount has not yet been "incurred" and Plaintiff's counsel did not submit any supplemental declaration with its reply brief confirming the actual amounts incurred. Therefore, the estimated 9.8 hours is stricken. Reserving a hearing date is clerical and counsel's billing entry of 0.1 for that task is also stricken.

The Court also notes that counsel

billed 4.2 hours across three timekeepers to prepare a "breakdown of expended hours", but this amount is unreasonable because it should not have taken three timekeepers to complete. The Court therefore reduces the amount of fees requested by \$1,723 by eliminating the time spent by Hovanes Margarian and Armen Margarian on this task, for a total reduction of \$8,793.

Lodestar

Multiplier

Last, Plaintiff's counsel requests a

lodestar multiplier of 1.5. The request for a multiplier is DENIED. Even if the

case was taken on contingency, there is no evidence that the case required any exceptional skill or that it required Plaintiff's counsel to turn down other work.

III.

CONCLUSION

In sum, the Court grants Plaintiff's motion for attorney fees in part. Plaintiff's request for fees is reduced from \$44,728 to \$33,745.

No lodestar multiplier is applied.

The Court does not include Plaintiff's costs in this amount because the Court already ruled on Defendant's motion to tax costs and awarded Plaintiff \$1,116.03 in costs.

Dated
this 3rd
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.